

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1045

By: Dollens

AS INTRODUCED

An Act relating to homeless persons; amending 47 O.S. 2021, Section 6-105.3, as last amended by Section 42, Chapter 452, O.S.L. 2024 (47 O.S. Supp. 2024, Section 6-105.3), which relates to identification cards for Oklahoma residents; exempting homeless persons from replacement fee; defining term; amending 63 O.S. 2021, Section 1-325, which relates to fees for certified copies of records; exempting homeless persons from fee for certified copy of birth certificate; establishing requirements for exemption; defining term; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 47 O.S. 2021, Section 6-105.3, as last amended by Section 42, Chapter 452, O.S.L. 2024 (47 O.S. Supp. 2024, Section 6-105.3), is amended to read as follows:

Section 6-105.3. A. In addition to the licenses to operate motor vehicles, Service Oklahoma may issue cards to Oklahoma residents for purposes of identification only. The identification cards shall be issued, renewed, replaced, canceled and denied in the same manner as driver licenses in this state. A licensee whose record reflects a notation of the person's proof of legal presence,

1 verified by the U.S. Department of Homeland Security, or proof of
2 U.S. citizenship, may obtain a REAL ID Compliant Identification Card
3 or a Noncompliant Identification Card from a licensed operator or
4 Service Oklahoma, regardless of the status of the license held by
5 the licensee. Provided, the licensee must comply with all REAL ID
6 documentation requirements to obtain a REAL ID Compliant
7 Identification Card. A person shall not apply for or possess more
8 than one state-issued or territory-issued REAL ID Compliant
9 Identification Card pursuant to the provisions of Section 6-101 of
10 this title.

11 The application for an identification card by any person under
12 the age of eighteen (18) years shall be signed and verified by a
13 custodial legal parent or legal guardian, either in person before a
14 person authorized to administer oaths or electronically if
15 completing an online application, or a notarized affidavit signed by
16 a custodial legal parent or legal guardian submitted before a person
17 authorized to administer oaths by the person under the age of
18 eighteen (18) years with the application. Except as otherwise
19 provided in this section, the identification cards shall be valid
20 for a period of either four (4) years from the month of issuance or
21 eight (8) years from the month of issuance; however, the
22 identification cards issued to persons sixty-five (65) years of age
23 or older shall be valid indefinitely from the month of issuance.

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1 B. 1. The Department of Corrections shall coordinate with
2 Service Oklahoma to provide REAL ID Noncompliant Identification
3 Cards to all inmates who do not have a current state-issued
4 identification card or driver license upon their release from
5 custody. The identification cards shall be issued, replaced,
6 canceled and denied in the same manner as driver licenses in this
7 state.

8 2. Service Oklahoma shall allow the use of a certified copy of
9 a birth certificate coupled with a Department of Corrections-issued
10 consolidated record card to serve as a valid form of photo
11 identification documentation to obtain a REAL ID Noncompliant
12 Identification Card.

13 3. REAL ID Noncompliant Identification Cards issued with a
14 consolidated record card from the Department of Corrections for
15 inmates shall be valid for a period of four (4) years from the month
16 of issuance for an allowable fee to be determined by Service
17 Oklahoma and are nonrenewable and nontransferable.

18 4. The fee charged for the issuance or replacement of a REAL ID
19 Noncompliant Identification Card pursuant to this subsection shall
20 be deposited in the Department of Public Safety Revolving Fund
21 through October 31, 2022. Beginning November 1, 2022, this fee
22 shall be deposited in the Service Oklahoma Revolving Fund.
23 Provided, however, REAL ID Noncompliant Identification Cards issued
24 to individuals required to register pursuant to the Sex Offenders

1 Registration Act shall only be valid for a period of one (1) year.
2 No person sixty-five (65) years of age or older shall be charged a
3 fee for a REAL ID Noncompliant Identification Card.

4 5. Service Oklahoma is authorized to promulgate rules and
5 procedures to implement the provisions of this subsection.

6 C. No person shall hold more than one state-issued or
7 territory-issued REAL ID Compliant Driver License or REAL ID
8 Compliant Identification Card, as defined in subsection G of Section
9 6-101 of this title. Service Oklahoma shall not issue a REAL ID
10 Compliant Identification Card to any applicant who has been
11 previously issued a REAL ID Compliant Driver License or REAL ID
12 Compliant Identification Card unless such license or identification
13 card has been surrendered to ~~the Department~~ Service Oklahoma by the
14 applicant. Service Oklahoma may promulgate rules related to the
15 issuance of replacement REAL ID Compliant Identification Cards in
16 the event of loss or theft.

17 D. The fee charged for the issuance or renewal of a REAL ID
18 Compliant Identification Card shall be Twenty-five Dollars (\$25.00)
19 for a 4-year card and Fifty Dollars (\$50.00) for an 8-year card.
20 The fee charged for the issuance or renewal of a REAL ID
21 Noncompliant Identification Card pursuant to this section shall be
22 Twenty-five Dollars (\$25.00) for a 4-year card and Fifty Dollars
23 (\$50.00) for an 8-year card; however, no person sixty-five (65)
24 years of age or older, or a one hundred percent (100%) disabled

1 veteran described in subsection P of Section 6-101 of this title,
2 shall be charged a fee for an identification card. Of each fee
3 charged pursuant to the provisions of this subsection:

4 1. Seven Dollars (\$7.00) of a 4-year card and Fourteen Dollars
5 (\$14.00) of an 8-year card shall be apportioned as provided in
6 Section 1104 of this title;

7 2. Three Dollars (\$3.00) of a 4-year card and Six Dollars
8 (\$6.00) of an 8-year card shall be credited to the Department of
9 Public Safety Computer Imaging System Revolving Fund to be used
10 solely for the purpose of the administration and maintenance of the
11 computerized imaging system of the Department through October 31,
12 2022. Beginning November 1, 2022, Three Dollars (\$3.00) of a 4-year
13 card and Six Dollars (\$6.00) of an 8-year card shall be credited to
14 the Service Oklahoma Computer Imaging System Revolving Fund to be
15 used solely for the purpose of administration and maintenance of the
16 computerized imaging system of Service Oklahoma;

17 3. Ten Dollars (\$10.00) of a 4-year card and Twenty Dollars
18 (\$20.00) of an 8-year card shall be deposited in the Department of
19 Public Safety Revolving Fund through October 31, 2022. Beginning
20 November 1, 2022, this fee shall be deposited in the Service
21 Oklahoma Revolving Fund;

22 4. Three Dollars (\$3.00) of a 4-year card and Six Dollars
23 (\$6.00) of an 8-year card shall be deposited to the State Public
24 Safety Fund created in Section 2-147 of this title; and

1 5. Two Dollars (\$2.00) for a 4-year card and Four Dollars
2 (\$4.00) for an 8-year card of the fee authorized by this subsection
3 related to the issuance or renewal of an identification card by a
4 licensed operator that does process approved applications or
5 renewals for REAL ID Compliant and REAL ID Noncompliant Driver
6 Licenses or Identification Cards shall be retained by the licensed
7 operator pursuant to subsection E of Section 1141.1 of this title.

8 E. The fee charged for replacement of a REAL ID Compliant
9 Identification Card, or REAL ID Noncompliant Identification Card,
10 shall be Twenty-five Dollars (\$25.00); however, no person sixty-five
11 (65) years of age or older and no homeless person who submits proof
12 of temporary residence through a social worker or the coordinator of
13 an emergency shelter for the homeless where the person is
14 temporarily residing shall be charged a fee for ~~an~~ a 4-year
15 identification card replacement. No more than one 4-year
16 identification card replacement furnished to a homeless person
17 pursuant to this subsection shall be provided without a fee. For
18 the purposes of this section, "homeless person" means a person who
19 is unable to secure permanent, fixed, and stable housing as
20 determined by a social worker or the coordinator of an emergency
21 shelter for the homeless. Of each fee charged pursuant to the
22 provisions of this subsection:

23 1. Seven Dollars (\$7.00) shall be apportioned as provided in
24 Section 1104 of this title;

1 2. Three Dollars (\$3.00) shall be credited to the Department of
2 Public Safety Computer Imaging System Revolving Fund to be used
3 solely for the purpose of the administration and maintenance of the
4 computerized imaging system of the Department through October 31,
5 2022. Beginning November 1, 2022, Three Dollars (\$3.00) shall be
6 credited to the Service Oklahoma Computer Imaging System Revolving
7 Fund to be used solely for the purpose of administration and
8 maintenance of the computerized imaging system of Service Oklahoma;

9 3. Ten Dollars (\$10.00) shall be deposited in the Department of
10 Public Safety Revolving Fund through October 31, 2022. Beginning
11 November 1, 2022, this fee shall be deposited in the Service
12 Oklahoma Revolving Fund;

13 4. Three Dollars (\$3.00) shall be deposited to the State Public
14 Safety Fund created in Section 2-147 of this title; and

15 5. Two Dollars (\$2.00) of the fee authorized by this subsection
16 related to the replacement of an identification card by a licensed
17 operator that does process approved applications or renewals for
18 REAL ID Compliant or REAL ID Noncompliant Driver Licenses or
19 Identification Cards shall be retained by the licensed operator
20 pursuant to subsection E of Section 1141.1 of this title.

21 F. The Oklahoma Tax Commission is hereby authorized to
22 reimburse, from funds available to that agency, each licensed
23 operator issuing an identification card to a person sixty-five (65)
24 years of age or older, an amount not to exceed One Dollar (\$1.00)

1 for each card or driver license so issued through June 30, 2023.

2 The Tax Commission shall develop procedures for claims for
3 reimbursement.

4 G. Notwithstanding any other provision of law, when a person
5 makes an application for a new identification card, or makes
6 application to renew an identification card, and the person has been
7 convicted of, or received a deferred judgment for, any offense
8 required to register pursuant to the Sex Offenders Registration Act,
9 the identification card shall be valid for a period of one (1) year
10 from the month of issuance, but may be renewed yearly during the
11 time the person is subject to registration on the Sex Offender
12 Registry. The cost for such an identification card shall be the
13 same as for other identification cards and renewals.

14 H. Nothing in this section requires or authorizes ~~the~~
15 ~~Department of Public Safety~~ Service Oklahoma to issue a REAL ID
16 Noncompliant Identification Card without the documentation required
17 by the provisions of paragraph 9 of subsection A of Section 6-103 of
18 this title.

19 SECTION 2. AMENDATORY 63 O.S. 2021, Section 1-325, is
20 amended to read as follows:

21 Section 1-325. The State Board of Health shall prescribe the
22 fees to be paid for certified copies of certificates or records, or
23 for a search of the files or records when no copy is made.

1 The collection of such fees may be accomplished by acceptance of
2 cash, money orders, credit cards, organization or personal checks,
3 ~~in.~~ In the event money orders or checks are proved to be
4 noncollectible, neither the State Board of Health, the State
5 Commissioner of Health, nor any of the employees of the State
6 Department of Health will be held responsible and personally liable,
7 ~~it.~~ It is further required that no additional certified copies of
8 records may be delivered to persons on whom noncollectible drafts
9 remain outstanding.

10 A search and a verification of birth facts shall be furnished
11 free of charge to any person volunteering for enlistment into a
12 branch of the Armed Forces of the United States, upon written
13 request therefor by an officer of the Armed Forces representing the
14 interests of such person who shall be volunteering for service.

15 A certified copy of a birth certificate shall be furnished,
16 without fee, upon request by a homeless person, provided that the
17 person submits a request through a social worker or the coordinator
18 of an emergency shelter for the homeless where the person is
19 temporarily residing. The request shall be submitted on the
20 emergency shelter's letterhead and shall include the shelter's
21 employer identification number and an attestation by the coordinator
22 that the person requesting the birth certificate is currently
23 homeless and residing at the shelter, or the request shall be
24 submitted on the social worker's agency or professional practice

1 letterhead and shall include the agency's or the professional
2 practice's employer identification number and an attestation by the
3 social worker that the person requesting the birth certificate is
4 currently homeless. A certified copy of a birth certificate
5 furnished pursuant to this paragraph shall be submitted to the
6 social worker or coordinator who submitted the request. No more
7 than one certified copy of a birth certificate furnished to a
8 homeless person pursuant to this paragraph shall be provided without
9 a fee. For the purposes of this section, "homeless person" means a
10 person who is unable to secure permanent, fixed, and stable housing
11 as determined by a social worker or the coordinator of an emergency
12 shelter for the homeless.

13 SECTION 3. This act shall become effective November 1, 2025.

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